IN THE PROBATE COURT OF _____ COUNTY
STATE OF GEORGIA

IN RE: ESTATE OF	**)**	
	)	
_____,	**)**	**ESTATE NO. _____**
MINOR	**)**	

PETITION FOR TEMPORARY GUARDIANSHIP OF A MINOR

The Petition of _____,
[Full name(s) of Petitioner(s)] First Middle Last

who is/are domiciled in _____ County and reside(s) at the following address(es): _____,
Street City County State Zip Code

who has/have actual physical custody of the Minor named above and whose mailing address(es) is/are: _____,
Street City County State Zip Code

show(s):

1.

_____,
[Full name of Minor] First Middle Last

age _____, whose date of birth is _____, is found at:

_____,
Street City County State Zip Code

2.

A copy of the Minor's birth certificate is attached as Exhibit "_____."

3.

Said Minor is in need of a temporary guardian. The Petitioner(s) has/have the following relationship(s) with the Minor: _____.

4.

The Minor's Mother is:

_____,
[Full name of Mother] *First* *Middle* *Last*

_____
Street *City* *County* *State* *Zip Code*

a. Is the Mother deceased? *[Select One]* ☐ Yes ☐ No
If yes, attach death certificate as Exhibit □_____"
and skip b-g

b. Has the Mother signed a consent for the creation of this temporary guardianship? *[Select One]* ☐ Yes ☐ No

c. Is the Mother's address known and listed above? *[Select One]* ☐ Yes ☐ No

d. Have the Mother's rights been terminated via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit □_____.□

e. Has the Mother lost custody via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit □_____.□

f. Does the Mother have joint legal custody via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit □_____.□

g. Does the Mother have sole legal custody via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit □_____.□

h. Was the Mother married to the Father of the child during or after the conception of the Child? *[Select One]* ☐ Yes ☐ No

i. Was the Mother married to another during the conception, gestation or birth of the Child? *[Select One]* ☐ Yes ☐ No
If yes, list that man□s name below:

_____,
[Full name of Mother's Husband] First *Middle* *Last*

_____
Street *City* *County* *State* *Zip Code*

5.

The Minor's Father is:

_____,
[Full name of Father] *First* *Middle* *Last*

_____
Street *City* *County* *State* *Zip Code*

a. Is the Father deceased? *[Select One]* ☐ Yes ☐ No
If yes, attach death certificate as Exhibit ☐_____☐ and skip b-g.

b. Has the Father signed a consent for the creation of this temporary guardianship? *[Select One]* ☐ Yes ☐ No

c. Is the Father's address known and listed above? *[Select One]* ☐ Yes ☐ No

d. Have the Father's rights been terminated via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐_____.☐

e. Has the Father lost custody via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐_____.☐

f. Does the Father have joint legal custody via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐_____.☐

g. Does the Father have sole legal custody via Court Order? *[Select One]* ☐ Yes ☐ No
If yes, attach the Order as Exhibit ☐_____.☐

6.

Is the Minor fourteen years of age or older? *[Select One]* ☐ Yes ☐ No

If you answer ☐Yes,☐ and the Minor made a selection, attach the Minor's Selection for the Petitioner(s) to act as temporary guardian(s) as Exhibit ☐_____.☐

7.

The temporary guardianship is needed because:

_____

_____

8.

Additional Data: *[Where full particulars are lacking, state here the reasons for any such omission. Also, state here all pertinent facts that may govern the method of giving notice to any party and that may determine whether or not a guardian ad litem should be appointed for any party.]*

_____

_____

_____

_____

_____

WHEREFORE, Petitioner(s) pray(s) that:

1. Service be perfected as provided by law; and
2. Petitioner(s) be appointed temporary guardian(s) of the Minor named above.

_____	_____
Signature of First Petitioner	Signature of Second Petitioner, if any
_____	_____
Printed Name	Printed Name
_____	_____
_____	_____
Mailing Address	Mailing Address
_____	_____
Telephone Number	Telephone Number

Signature of Attorney _____

Printed Name of Attorney _____

Address _____

_____

Telephone Number _____ State Bar #_____

VERIFICATION

GEORGIA, _____ COUNTY

Personally appeared before me the undersigned Petitioner(s) who, after being duly sworn, state(s) that the facts set forth in the foregoing Petition for Temporary Letters of Guardianship of Minor (and the attached Exhibit(s)) are true and correct.

Sworn to and subscribed before me this

_____ day of _____, 20_____

_____
Signature of First Petitioner

_____
NOTARY/CLERK OF PROBATE COURT

_____
Printed Name of First Petitioner

My Commission Expires _____

Sworn to and subscribed before me this

_____ day of _____, 20_____

_____
Signature of Second Petitioner, if any

_____
NOTARY/CLERK OF PROBATE COURT

_____
Printed Name of Second Petitioner, if any

My Commission Expires _____
